

Judgment Sheet.
IN THE LAHORE HIGH COURT, LAHORE.
(JUDICIAL DEPARTMENT)

Writ Petition No.8-R/2014

Fakhar-ud-Din
Versus
Member (Judicial-V), Board of Revenue etc.

JUDGMENT

DATE OF HEARING:	12.01.2015.
PETITIONER BY:	Mr. Seerat Hussain Naqvi, Advocate.
RESPONDENTS BY:	Mr. Mahmood A. Sheikh, Advocate. Miss Asma Hamid, A.A.G.

Ch. Muhammad Iqbal, J:- Through this Writ
Petition, petitioner prays as under:-

“It is, therefore, most respectfully prayed that in the light of the order dated 10-01-77 in case No.318-A/17 entered in QPR registered (V) regarding claim No.3616/638 and balance unit 11168 of Muzafar Ghar measuring land 6557 kanal 15 marlas may be allotted and implemented with the name of the petitioner or in the alternated other land may be directed to be allotted to the petitioner by the respondent No.1.

It is further prayed that land measuring 604 kanal 12 marlas in claim No.1582 dated 08-12-52 confirmation dated 11-02-66 Village Baqi Pura Tehsil District Karnal India may also be allotted to the petitioner in the light of allotment order dated 30-08-04 in Village Takhat Pari Rawal Pindi and land measuring 135 kanal 17 marla Mouza Chapri Aku and land measuring 124 kanal 19 marla in Mouza Bakhtan and land measuring 68 kanal 11 marlas in Mouza

Basanta Tehsil Kalar Syedan and land measuring 689 kanal 6 marla in Village Wani of Tehsil Texila District Rawal Pindi pending totaling units 13,627 may be given to the petitioner out of which 5357 units have already been allotted to the petitioner and now the balance units of 8270 and a direction may also be given for the allotment of the balance units 8270 by setting aside order dated 25-07-13 passed by respondent No.1.

Any other relief to which this Honourable court deems fit and appropriate may also be awarded.”

2. Brief facts of the case are that Atta Muhammad etc. fraudulently obtained allotment of land measuring 6544-Kanals situated in Patti Ghulam Ali Sharqi, Tehsil Kot Addu, District Muzafargarh at Khata RL-IIs No.1 & 4, the Additional Settlement Commissioner after holding the inquiry into the matter vide order dated 10.01.1977 cancelled the said fraudulent allotment and resumed the land. Petitioner submitted applications for the allotment of resumed land against his unspecified P.I. Units. In pursuance of his applications, the report was called from the Central Record Office regarding the entitlement of the petitioner then it was reported that the claim of the petitioner falls within the list of doubtful Mauzajat and is in double lock. Further in pursuance of the application of the present petitioner, it is reported on behalf of the Settlement & Rehabilitation Wing that the case of the petitioner does not fall within the purview of pending proceedings because the enquiry proceedings

regarding fraudulent allotment were initiated and completed after the Evacuee Properties and Displaced Persons Laws (Repeal) Act No.XIV of 1975. In this way, the petitioner is not entitled for the allotment against his doubtful P.I. Units after the Repeal Act, 1975. Consequently, the allotment in favour of the petitioner was refused by the Notified Officer vide order dated 14.06.1984. The present petitioner filed Writ Petition No.225-R/1984 before this Court which was dismissed by the learned Single Judge-in-Chamber vide order dated 15.10.1984. Then the petitioner filed I.C.A. No.242/1984 which was dismissed as withdrawn vide order dated 27.10.1992. The petitioner applied to the District Collector, Muzaffargarh for the allotment of resumed land situated in Mauza Patti Ghulam Ali Sharqi, Tehsil Kot Addu, District Muzaffargarh but his request was declined due to the reasons that the said Officer was not competent to accommodate the petitioner after the Evacuee Properties and Displaced Persons Laws (Repeal) Act No.XIV of 1975 and after publication of Notification dated 07.07.2004, the powers of Notified Officer were withdrawn from the District authorities. The petitioner remained unsuccessful to get the allotment of land measuring 6544-Kanals situated in Mauza Patti Ghulam Ali Sharqi, Tehsil Kot Addu, District Muzaffargarh.

The petitioner tried to grab an Evacuee Land measuring 8137-Kanals situated in various villages of Tehsil & District Rawalpindi. Petitioner has procured bogus order dated 30.08.2004 with the forged signatures of Muhammad Waseem, the then Deputy Secretary (S&R), Board of Revenue, Punjab. During the inquiry proceedings, the said Notified Officer appeared before the Enquiry Officer and recorded his statement on 24.07.2007 and stated that order dated 30.08.2004 is a bogus one and prepared with his forged signatures. Maqsood Elahi, the then Reader of the said Notified Officer also recorded his statement on 23.07.2007 wherein he stated that the said order was not passed by Muhammad Waseem, the then Deputy Secretary (S&R), Board of Revenue, Punjab. The said bogus order dated 30.08.2004 was dispatched to the District Collector, Rawalpindi vide Diary No.1387 dated 30.08.2004. During the inquiry proceedings, the Dispatch Clerk named Waris Pervaiz recorded his statement on 23.07.2007 that the letter dated 30.08.2004 is a forged one and Diary No.1387, letter dated 02.10.2004 was issued in the name of Col. (Retd) Muhammad Maqsood Ahmad, Additional Director, NAB, 5-Club Road, GOR-I, Lahore. After scrutiny, the case was placed before the then Chief Settlement Commissioner, Punjab in the public interest. Consequently, the then

MBR/Chief Settlement Commissioner after hearing the counsel for the present petitioner and declared the order dated 30.08.2004 as non-existing, void ab-initio and the result of fraud and also direction issued to the District Officer (Revenue), Rawalpindi for resumption of the Evacuee Land in favour of the Provincial Government (). It was further directed that the mutations in favour of the Provincial Government () shall be sanctioned by the concerned Revenue Officer accordingly and a compliance report shall be forwarded to the Reader of MBR/Chief Settlement Commissioner.

The petitioner assailed the order dated 19.05.2008 and filed Writ Petition No.93-R/2008 which was remanded vide order dated 05.03.2009. In pursuance of remand order, the proceedings were initiated and during course of hearing, the petitioner submitted different applications which were duly considered by the Chief Settlement Commissioner and on 25.07.2013, the Chief Settlement Commissioner cancelled and resumed the land measuring 6544 Kanals situated in Mauza Patti Ghulam Ali Sharqi, Tehsil Kot Addu, District Muzaffargarh in pursuance of order dated 10.01.1977 and also resumed the land measuring 8137-Kanals 15-Marlas

situated in District Rawalpindi and Muzaffargarh, hence this Writ Petition.

3. Learned counsel for the petitioner submits that the impugned order is illegal on the face of it. Petitioner has not been heard by the Chief Settlement Commissioner while passing the impugned order. Learned counsel for the petitioner further submits that no inquiry has been conducted in this regard and no statement of the concerned officials recorded regarding the forged signatures and letter has been recorded, as such, this Writ Petition may kindly be allowed as prayed for. Learned counsel for the petitioner further submits that the petitioner is also entitled for the allotment of some available evacuee land against his outstanding units.

4. Learned counsel appearing on behalf of the respondents submits that the petitioner committed fraud and he has no valid claim. The petitioner initially tried to get allotment of land measuring 6544-Kanals in District Muzaffargarh which was cancelled vide order dated 10.01.1977 and the request of the petitioner was turned down by the Notified Officer on 14.06.1984 and same was upheld by this Court vide judgment dated 15.10.1984 in Writ Petition No.225-R/1984. The valuable land is an Evacuee Property. The inquiry has been conducted by the competent

authority and during inquiry proceedings, the efforts were also made for tracing out the Evacuee Property in public interest which is as under:-

“i. Land measuring 604 kanals & 12 marlas situated in Mauza Takht Pari, Tehsil and District Rawalpindi which was tried to be procured by the present petitioner by way of bogus order dated 30.08.2004.

ii. Land measuring 124 kanals & 19 marlas falling in khata No.446, khatuni No.841 & 842, situated in Mauza Mohrian Bakhtan, Tehsil Kallar Syedan, District Rawalpindi.

iii. Land measuring 157 kanals & 2 marlas, situated in Mauza Chhapri Akku, Tehsil Kallar Syedan, District Rawalpindi.

iv. Land measuring 77 kanals & 14 marlas, situated in Mauza Basanta, Tehsil Kallar Syedan, District Rawalpindi.

v. Land measuring 629 kanals & 8 marlas, situated in Mauza Wannu, Tehsil Texla, District Rawalpindi.”

Learned counsel for the respondents also submits that resumption order passed on 10.01.1977 but the Revenue Hierarchy inclusion with the petitioner and other has not implemented the said order. The petitioner on the basis of fraud and misrepresentation tried to usurp the valuable evacuee land and the Chief Settlement Commissioner under law laid down by the August Supreme Court of Pakistan in the case reported as Muhammad Baran and Others Vs. Member (Settlement & Rehabilitation), Board of Revenue, Punjab and Others (PLD 1991 SC 691) had jurisdiction to

adjudicate the matter. Further submits that after hearing the petitioner and all concerned, the Chief Settlement Commissioner passed the order dated 25.07.2013. There is no provision for the alternate land under the Repeal Act is available. Reliance is placed on the case reported as Muhammad Ramzan and Others Vs. Member (Rev.)/CSS and Others (1997 SCMR 1635). The evacuee land will be disbursed through scheme, as such, the Writ Petition may kindly be dismissed.

5. Heard. Record perused.

6. The petitioner obtained land on the basis of forged order dated 30.08.2004 in this regard Muhammad Waseem, the then Deputy Secretary, (S&R), Board of Revenue, Punjab appeared before the Enquiry Officer and recorded his statement on 24.07.2007 and stated that order dated 30.08.2004 is bogus one and prepared with his forged signatures. Maqbool Elahi, the then Reader of the said Notified Officer also recorded his statement on 23.07.2007 and stated that the order was not passed by Muhammad Waseem, the then Deputy Secretary (S&R), Board of Revenue, Punjab. The said bogus order dated 30.08.2004 was dispatched to the District Collector, Rawalpindi vide Diary No.1387 dated 30.08.2004 and during inquiry proceedings,

the Dispatch Clerk named Waris Pervaiz recorded his statement on 23.07.2007 and stated that letter dated 30.08.2004 is a forged one and after scrutiny, the resumption order has been passed. The Revenue Hierarchy has not implemented the order dated 10.01.1977 and due to non-implementation in the Revenue record, the petitioner fraudulently prepared forged letters/orders etc. The said possession made it clear that the allotment order was bogus and anti-dated and prepared to grab land measuring 8137-Kanals in various Villages of District Rawalpindi and committed fraud with the State Property which ultimately the property of the public at large.

The request of the petitioner for the allotment of some available evacuee land against outstanding 8270 units is also not tainable at this stage when specifically case did not come within the ambit of the “pending proceedings” as defined under Section 2(2) of the Repeal Act of 1975. It is also noted here that the genuineness of the claim of petitioner is also doubted, even otherwise mere pendency of the unsatisfied claim did not constitute “pending proceedings” and the petitioner may avail some other alternate remedy, if any. Reliance is placed on the case reported as Province of Punjab Vs. Ali Muhammad (2001 SCMR 1822). As all the

Settlement Laws were repealed w.e.f 1st July, 1974 by virtue of Evacuee Properties and Displaced Persons Laws (Repeal) Act of 1975 and according to Section 3 of said Repealing Act of 1975, all the residual evacuee properties were transferred to the Provincial Government for disposal according to the Schemes framed under the Section 3 of Act of 1975 and not otherwise. Reliance is placed on the case reported as Member, Board of Revenue, Punjab, Lahore Vs. Rafaqat Ali **(1998 SCMR 2596)**. In the Schemes framed under the Section.3 of said Repealing Act, there is no provision for allotment/alternate allotment of land against claims. Reliance is placed on the cases reported as Muhammad Ramzan and Others Vs. Member (Rev.)/CSS and Others **(1997 SCMR 1635)** and Province of Punjab Vs. Ali Muhammad **(2001 SCMR 1822)**.

7. The petitioner on the basis of fraud and misrepresentation tried to usurp the valuable evacuee land and the Chief Settlement Commissioner under law laid down by the Hon'ble August Supreme Court of Pakistan in the case reported as Muhammad Baran and Others Vs. Member (Settlement & Rehabilitation), Board of Revenue, Punjab and Others **(PLD 1991 SC 691)** has jurisdiction to adjudicate the matter. Reliance is placed on the cases reported as The Chief

Settlement Commissioner, Lahore Vs. Raja Muhammad Fazil Khan and Others (PLD 1975 Supreme Court 331), Syed Wajihul Hassan Zaidi Vs. Government of the Punjab and Others (PLD 2004 SC 801), Shamrooz Khan Vs. Muhabbat Khan and Another (1989 SCMR 819), Waheed Ahmad and Others Vs. Additional Commissioner (Revenue)/Settlement Commissioner, Rawalpindi Division, Rawalpindi and Others (1990 CLC 220), Muhammad Baran and Others Vs. Member (Settlement & Rehabilitation), Board of Revenue, Punjab and Others (PLD 1991 Supreme Court 691), Talib Hussain and Others Vs. Member, Board of Revenue and Others (2003 SCMR 549) and Muhammad Ramzan and Others Vs. Member (Rev.)/CSS and Others (1997 SCMR 1635)

8. The petitioner obtained the land in Rawalpindi as well as Muzaffargarh measuring 8173 Kanals 15 Marlas is based on fraud and misrepresentation, as such, the order passed by Chief Settlement Commissioner is according to law. Learned counsel for the petitioner has not identified any illegality or irregularity committed by the respondent No.1 while passing the order in question and further also not pointed out any jurisdictional defect in this regard. The petitioner on the basis of fraud created orders and letters for allotment in

connivance with the Revenue officials, as such, the Writ Petition is hereby **dismissed**.

9. This Court deems it also proper that the Senior Member Board of Revenue and Chief Settlement Commissioner should take necessary steps to retrieve the land in question from the clutches of the land grabbers and dispose of the same in accordance with law which is a property of public at large/State Property.

(CH. MUHAMMAD IQBAL)
JUDGE

APPROVED FOR REPORTING

JUDGE

MFH (PA)